

U. S., at 102. When combined with the theoretical justification for relator standing discussed earlier, it leaves no room for doubt that a *qui tam* relator under the FCA has Article III standing.⁸ We turn, then, to the merits.

III

Petitioner makes two contentions: (1) that a State (or state agency) is not a “person” subject to *qui tam* liability under the FCA; and (2) that if it is, the Eleventh Amendment bars such a suit. The Courts of Appeals have disagreed as to the order in which these statutory and Eleventh Amendment immunity questions should be addressed. Compare *United States ex rel. Long v. SCS Business & Technical Institute, Inc.*, 173 F. 3d 890, 893–898 (CA DC 1999) (statutory question first), with *United States ex rel. Foulds v. Texas Tech Univ.*, 171 F. 3d 279, 285–288 (CA 5 1999) (Eleventh Amendment immunity question first).

Questions of jurisdiction, of course, should be given priority—since if there is no jurisdiction there is no authority to sit in judgment of anything else. See *Steel Co.*, *supra*, at 93–102. “Jurisdiction is power to declare the law, and when it ceases to exist, the only function remaining to the court is that of announcing the fact and dismissing the

⁸ In so concluding, we express no view on the question whether *qui tam* suits violate Article II, in particular the Appointments Clause of §2 and the “take Care” Clause of §3. Petitioner does not challenge the *qui tam* mechanism under either of those provisions, nor is the validity of *qui tam* suits under those provisions a jurisdictional issue that we must resolve here. See *Steel Co. v. Citizens for Better Environment*, 523 U. S. 83, 102, n. 4 (1998) (“[O]ur standing jurisprudence, . . . though it may sometimes have an impact on Presidential powers, derives from Article III and not Article II”); see also *Lujan v. Defenders of Wildlife*, 504 U. S. 555, 576–578 (1992).

The dissent implicitly attacks us for “introduc[ing] [this question] *sua sponte*.” *Post*, at 801. We raise the question, however, only to make clear that it is not at issue in this case. It is only the dissent that proceeds to volunteer an answer. See *post*, at 801–802.